

responses in Column Nos. 1 and 2).

- c. **Preparation of Joint Separate Statement.** The propounding party shall prepare the initial draft of the Joint Separate Statement and fill in the information as to Column Nos. 1 through 3. The propounding party shall then provide that draft to the responding party who shall complete Column No. 4. The responding party shall then provide the draft back to the propounding party who shall then complete Column No. 5.
 - d. **Filing.** Upon completion of the Joint Separate Statement, the parties shall cooperate to arrange for its filing with the Court and ensure that both parties receive a final, file-endorsed copy of the pleading not less than one week in advance of the hearing date on the Discovery Motions.
 - e. **Courtesy Hard Copy and Hard Copy Format.** The parties shall also cooperate to provide a courtesy hard copy of the Joint Separate Statement to Department 34 not less than one week in advance of the hearing date on the Discovery Motions. **Except as to any cover pleading page(s), this hard copy shall be provided on legal sized paper and printed in a landscape orientation with no less than a 14 point font.** This is a courtesy copy formatted for the Court's use and may be re-formatted from the as-filed version.
3. The Court shall issue the order after hearing.
4. **NOTICE REGARDING COMPLIANCE WITH ORDERS:** All parties and their counsel, if any, are hereby admonished that a failure to comply with the current orders, including, but not limited to, the orders made herein, and/or conduct which frustrates or obstructs such orders may result in the imposition of sanctions against you, including, but not limited to, an award of attorneys' fees and costs and/or monetary sanctions up to \$1,500 pursuant to Code of Civil Procedure section 177.5.

8. 9:00 AM CASE NUMBER: C24-01921
CASE NAME: A-S PIPELINES INC., A CALIFORNIA CORPORATION VS. GOLD COAST PIPELINES, INC. A CALIFORNIA CORPORATION
HEARING ON DEMURRER TO: TO: 2ND AMENDED COMPLAINT OF DAVID T. SEENO
FILED BY: NORSAN FINANCIAL & LEASING, INC.
TENTATIVE RULING:

The Court continues the hearing on this motion to June 22, 2026 at 9:00 a.m.

9. 9:00 AM CASE NUMBER: C24-02532
CASE NAME: ANGEL'S EXCAVATION & CONSTRUCTION, INC VS. JESICA RODRIGUEZ
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT JUDGMENT AGAINST NON-PARTICIPATING PARTY WHO COULD NOT OTHERWISE BE LIABLE AS A MATTER OF LAW MOTION FILED TO/FOR
FILED BY:
TENTATIVE RULING:

Before the Court is Defendant Jessica Rodriguez ("Defendant")'s "Motion in Equity to Set Aside Default Judgment Against Non-Participating Party" ("Motion"). The Motion is opposed by Plaintiff Angel's

Excavation & Construction, Inc. dba Angel's Excavation & Earthwork ("Plaintiff").

Defendant moves pursuant to Code of Civil Procedure section 473(b) and (d) on several grounds.

For the following reasons, the motion is **GRANTED**.

Procedural History

Plaintiff filed a verified complaint for (1) breach of written contract, (2) breach of a loan agreement, (3) breach of the covenant of good faith & fair dealing, and (4) declaratory relief on September 20, 2024. The Proof of Service of Summons on file indicates that Defendant was served by substituted service on October 14, 2024.

Defendant did not file a response to the Complaint. On December 17, 2024, when no responsive pleading had been filed and served, Plaintiff filed a request for default. A default was entered against the Defendant the same day.

Plaintiff filed a request for Court Judgment on March 10, 2025. Ultimately, an amended judgment was entered on August 29, 2025 in the amount of \$974,003.21.

Defendant filed the instant motion to set aside default judgment on December 8, 2025.

The Court heard argument on April 20, 2026 and continued the matter to June 8, 2026 for additional briefing on whether this default judgment should be set aside as a void judgment.

Evidentiary Objections

First, Plaintiff objects to the evidence proffered by Defendant on reply.

"The general rule of motion practice. . . is that new evidence is not permitted with reply papers. . . '[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case . . . ' and if permitted, the other party should be given the opportunity to respond." (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538.) Reply evidence should not address substantive issues in the first instance but only fill gaps in the evidence created by opposition. (*Id.* at 1538.)

In its discretion, the Court declines to consider Defendant's new reply evidence.

Standard

Defendant moves to set aside the default judgment pursuant to California Code of Civil Procedure ("Code Civ. Proc.") § 473(b).

Code of Civil Procedure 473(b) provides, in relevant part:

The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after

the judgment, dismissal, order, or proceeding was taken.

When moving to set aside a default under Code of Civil Procedure section 473(b), the moving party has the burden of proof. (*In re Marriage of Kieturakis* (2006) 138 Cal.App.4th 56, 88.) However, section 473 is often applied liberally when a party in default moves promptly to seek relief and the party opposing the motion will not suffer prejudice if relief is granted. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233.)

Defendant also moves pursuant to subsection (d) which reads: “The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.”

Analysis

Section 473, subdivision (d) vests trial courts with authority to “set aside any void judgment.” (Code Civ. Proc. § 473(d).) “[A] trial court may grant a motion to set aside that judgment as void only if the judgment is void on its face. A judgment or order is said to be void on its face when the invalidity is apparent upon an inspection of the judgment-roll.” (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441 [internal citation and quotations omitted].)

If the complaint does not state a cause of action or the allegations do not support a claim for relief, a default judgment is erroneous and “cannot stand.” (*Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 282 [default judgment reversed where complaint failed to state cognizable claims against defendants]; see *Falahati v. Kondo* (2005) 127 Cal.App.4th 823, 829; *Vasey v. California Dance Co.* (1977) 70 Cal.App.3d 742, 749 [defendants who defaulted did not admit corporation was their alter ego where complaint was insufficient in pleading elements to justify disregard of corporate entity].) As *Falahati* put it, “It is well established a default judgment cannot properly be based on a complaint which fails to state a cause of action against the party defaulted because, as Witkin explains, ‘[a] defendant who fails to answer admits only facts that are well pleaded.’ Because the third amended complaint alleged no facts with respect to Kondo, there were no facts for Kondo to admit.” (*Falahati v. Kondo, supra*, 127 Cal.App.4th at p. 829, fn. omitted.) *Falahati* went on to hold, “The default judgment in the present case is void for two reasons. The complaint contained no factual allegations with respect to Kondo; therefore it failed to apprise him of the nature of plaintiffs’ demand against him. In addition, the complaint does not specify the amount of damages plaintiffs seek from Kondo” (*Falahati, supra*, at p. 830, fn. omitted, citing *Christerson v. French* (1919) 180 Cal. 523, 525–526.)

Here, the underlying complaint is bereft of individual allegations against Ms. Rodriguez, other than perhaps boilerplate references to “defendants” in various allegations. Nor does it include any alter ego allegations. The complaint alleges that “Defendant Jesica Mariela Rodriguez is a natural person over the age of eighteen years and acts as the A.K.D. Management, Inc.’s Chief Executive Officer[.]” (Complaint at ¶ 4.) The complaint further alleges that “Plaintiff [is] informed and believes and upon such information and belief allege that Defendants were the agent(s), servant(s) and/ or employee(s) of each of the other Defendants and in so doing the acts hereinafter alleged were acting within the course and scope of that agency, employment or representation, with the knowledge, consent and

approval of each of the other Defendants.” (*Id.* at ¶ 14.) These allegations were insufficient to appraise Ms. Rodriguez of the demand against her or plead any cognizable basis for the imposition of liability upon her for the pleaded breach of contract claims.

Despite some broad references to “Defendants, and each of them,” the more specific allegations of the complaint (and its attachments) reflect that the “numerous written contracts” were with “A.K.D. Management Inc” who “agreed to act as the Prime or General Contractor.” (See Complaint, ¶9.) The other causes of action expressly pled that the corporate defendant (and arguably defendant Mejia) were the parties that entered into the subject contract. (See Complaint, ¶¶11 and 25.) It is notable that Exhibit 1 to the Complaint plainly reflects the contracts having been made with “AKD Management,” consistent with the specifically pleaded allegations:

THIS AGREEMENT is made this _____ 15th day of Jul , 2023, between Angel's Excavation & Earthwork, hereinafter called the Subcontractor and _____ AKD Management Ink _____, hereinafter called the Prime.

(Complaint, Exhibit 1 [one of multiple attached forms of contract with similar provisions].)

The same is true of the attached loan agreement:

THIS LOAN AGREEMENT (this “Agreement”) dated this 3 day of 10, 2023

Borrower: A.K.D. Management Inc. (Allan Francisco Mejia, Owner), with Address at: 2526 Shadowbrooke Rd, Brentwood, CA 94513, USA. EIN: 47-3299861, Entity No. 3762646
(The “Borrower”)

(Complaint, Exhibit 2.)

Accordingly, the motion is **GRANTED**.

10. 9:00 AM CASE NUMBER: C24-03270
CASE NAME: TANIA MARKER VS. STATE OF CALIFORNIA HEALTH AND HUMAN SERVICES AGENCY
***HEARING ON MOTION IN RE: LEAVE TO FILE A 3RD AMENDED COMPLAINT**
FILED BY: MARKER, TANIA
TENTATIVE RULING:

Plaintiff Tania Marker (“Plaintiff”) filed a Motion for Leave to An Amended Complaint on January 23, 2026 (the “Motion for Leave to File”). The Motion for Leave to File was set for hearing on June 8, 2026.

Since the motion filing, Plaintiff was granted leave regarding the filing of a Third Amendment as part of case management proceedings. See Order entered March 13, 2026.

Disposition

The Court further finds and orders as follows:

1. The Motion for Leave to File is MOOT and OFF-CALENDAR.